

EPA Compliance Workshops Don't Reduce Violations

Lessons from “The effect of compliance assistance on pollution discharges and violations of environmental regulations” by Paul J. Ferraro & Jay P. Shimshack in *Journal of Policy Analysis and Management*, 2026.

Offering polluters free help to follow the rules doesn't make them more likely to follow them. New research studying hundreds of facilities that were offered free compliance workshops found the workshops didn't reduce violations.

BACKGROUND

Environmental enforcement in the U.S. has long centered on penalties: inspect facilities, catch violations, and levy fines. **Compliance assistance** takes a different approach. Rather than punishing facilities that break the rules, regulators help them follow the rules in the first place, through free workshops, guidance, and technical support. The premise is that many violations stem from confusion or limited expertise rather than deliberate corner-cutting. Over the past ten years or so, compliance assistance has become the preferred method for the Environmental Protection Agency (EPA) instead of penalties. Yet **whether the help actually changes behavior had rarely been tested.**

To test this, researchers studied a set of compliance workshops offered to wastewater treatment facilities on Ohio. Hundreds of facilities that had recently been cited for violations volunteered to participate in the workshops, which were rolled out over several months. Researchers had access to detailed records from the Ohio EPA of the facilities' violations and pollution discharges, both before and after the workshops.

WHAT THE STUDY FOUND

THE WORKSHOPS' EFFECT ON VIOLATIONS, MONTH BY MONTH

Source: Ferraro & Shimshack (2026).



Note: The shaded band is the range of statistical uncertainty around each month's estimated effect. Because it always spans “no change,” the workshops had no detectable effect on violations.

Evaluating whether a policy works is difficult when researchers can't randomly choose who receives it or when. For the EPA compliance workshops, facilities decided for themselves whether to attend, and the ones that signed up may already

have been more motivated to reduce violations than the ones that didn't. That motivation is nearly impossible to separate from the effect of the training itself, so an improvement that follows the workshops is not necessarily proof the workshops caused it. The only way to know is to compare against a credible benchmark: similar facilities that signed up but had not yet been trained. Since the workshops reached different facilities at different times, the researchers could measure facilities trained early against equally motivated ones trained later.

If the workshops changed behavior, violations at trained facilities should have fallen relative to facilities not yet trained. The figure tracks exactly that, month by month around the workshop. Instead of bending at the moment of training, the line stays flat at zero. **Trained facilities were no less likely to violate than comparable facilities that had not yet been trained.**

TAKEAWAYS

THE WRONG DIAGNOSIS

Compliance assistance rests on the idea that facilities break the rules because they don't fully understand them. For these wastewater plants, that wasn't the case — extra training and guidance changed little, a sign that their violations had other roots. **A program that solves a problem facilities don't actually have was never likely to work.**

A MISLEADING SUCCESS

Before this study, the EPA's own numbers seemed to tell a success story, with a comparison of violations before and after the workshops showing them dropping by more than 50%. But that comparison was misleading, because **the same decline was happening at facilities that hadn't been trained at all**. What looked like the effect of the workshops was really just a broader downward trend, and without a credible benchmark to separate the two, it was easy to mistake one for the other.

WHAT'S AT STAKE

Buoyed by that apparent success, the EPA has moved to expand the program to other states. Scaling a program with little measurable effect commits more public funding without delivering the reduction in pollution it was meant to achieve. The lesson is not that assistance can never help; this is one program, and small benefits can't be ruled out. The point is that **such programs should be rigorously tested before they replace tools already known to work.**